

ZONING

355 Attachment 3

Town of North Castle

§ 355-23. Schedule of Office and Industrial District Regulations (Part 1)

[Amended 4-22-1993 by L.L. No. 2-1993; 9-23-1993 by L.L. No. 8-1993; 7-6-1995 by L.L. No. 4-1995; 8-16-2006 by L.L. No. 14-2006; 12-13-2006 by L.L. No. 30-2006; 6-10-2008 by L.L. No. 10-2008; 10-6-2009 by L.L. No. 12-2009; 11-9-2009 by L.L. No. 13-2009; 6-25-2014 by L.L. No. 2-2014]

NORTH CASTLE CODE

Schedule of Office and Industrial District Regulations (Part 1)

NOTES:

Where any part of a nonresidential building is to be used for residence purposes, it shall meet all the requirements for a residence building, where such requirements are higher.

- (a) On lots abutting a turnaround on a dead-end street, the Planning Board may permit the frontage to be reduced, where applicable, to not less than 100 feet.
- (b) See § 355-15 for special yard provisions.
- (c) Gasoline pumps shall not be located nearer than 15 feet to a lot line.
- (d) Where access to required parking space in the rear is through a side yard, such side yard shall be determined by the Planning Board, but in no case to be less than 16 feet.
- (e) Where a side line of a lot abuts the rear line of another lot, such side yard shall be at least equal to the required rear yard or such other lot.
- (f) See § 355-15E for special height provisions.
- (g) Where a lot abuts a residence district, the yard shall measure at least 50 feet.
- (h) Where a lot abuts a residence district, the required side yard shall be the same as that required in said residence district, but in no case less than as required elsewhere in this chapter.

- (i) (Reserved)
- (j) (Reserved)
- (k) See § 355-29E(1) for existing lots of less than minimum required size.
- (l) (Reserved)
- (m) Except that the Planning Board may approve one or more lots of at least two acres each and 200 feet of frontage and depth, as part of a subdivision whose lots average four acres each in area.
- (n) Except that any lot of at least one acre, wholly within the Town of North Castle, existing on April 27, 1981, may be used, provided that it meets other standards.
- (o) These requirements may be varied or reduced in connection with approval of the site plan by the Planning Board, where the size and/or shape of existing lots may warrant or require it.
- (p) Where a rear line of a lot abuts lands dedicated for park use, such minimum setback may be reduced to 50 feet.
- (q) Where the rear line of a lot abuts land utilized for rail transportation purposes, such minimum setback may be reduced or eliminated at the discretion of the Planning Board.